

26SMCV04022 26SMCV04022

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-19

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The application is GRANTED.

Plaintiff may serve the discovery aimed at identifying the identities of

the DOE defendants at any time. The

court is not 100% certain that there is exigency in the sense that this could

not have been done by noticed motion.

But that said, in this case the question arises: notice to whom? Given that there is no one to whom notice can

be given anyway, it makes little sense to wait the 16 days. And on the merits of the motion, good cause

is shown. The 20 day waiting period will

never run because plaintiff cannot—even with reasonable diligence—discovery the

defendant's identity without this discovery, and therefore will never be able

to serve defendants. The court will sign

the proposed order.